

HHS OCR Breach Wall of Shame

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The HHS OCR Breach Wall of Shame is a HIPAA reporting tool managed by the Department of Health and Human Services (HHS), Office for Civil Rights (OCR). The Wall of Shame is a list of covered entities that experience breaches of protected health information (PHI) affecting more than 500 individuals. The list is very extensive with breaches dating back from December 2009 to the present (Breaches of unsecured protected health information, Breach Portal: Notice to the Secretary of HHS breach of unsecured protected health information). The Wall of Shame is available to view by anyone online, which poses advantages and disadvantages of providing this list.

On February 17th, 2009, the Health Information Technology for Economic and Clinical Health (HITECH) Act was signed into law. Under Section 13402(e)(4), notification in the case of a breach, all breaches of protected health information (PHI) affecting more than 500 individuals must be posted by the Secretary in a list (U.S. Department of Health & Human Services - Office for Civil Rights). This list's official name is the Breach Notification Portal, which is commonly known as the Breach Wall of Shame. The breach must be reported no later than 60 calendar days from the discovery of the breach (Breach notification rule). Each covered entity must submit a notice of the breach electronically through the OCR portal (Breach reporting).

The information available on the Wall of Shame are fields required by the OCR when reporting a breach, and are made available for anyone to view on the website (Breach Portal: Notice to the Secretary of HHS breach of unsecured protected health information). The fields on the list include the name of the covered entity, the state it occurred in, the covered entity type, how many individuals were affected, the breach submission date, the type of breach, and the location of breached information.. The Wall of Shame also includes 2 sections: the breaches currently under investigation and archived breaches. The currently under investigation breaches

include reported breaches within the last 24 months that are under investigation by OCR. As of August 9th, 2023, there are currently 897 breaches under investigation with the most current one as August 4th, 2023. The archived breaches include all resolved breach reports and reports older than 24 months. There are about 5,557 archived cases with the earliest cases from December 2008. On the Wall of Shame, data breaches reported are broken into different types and locations. The types of breaches can include Hacking/IT incidents, improper disposal, and loss. Locations of the breaches can include desktop computers, electronic medical records, and email (Breach Portal: Notice to the Secretary of HHS breach of unsecured protected health information). A thorough examination of the cases under investigation presents that a substantial portion of the breaches are hacking/IT incidents. The less common types of breaches are improper disposal, loss, and theft (Breaches of unsecured protected health information, Breach Portal: Notice to the Secretary of HHS breach of unsecured protected health information).

There are many data breach cases listed on the Wall of Shame that have occurred due to risky email use. For example, the Native American Rehabilitation Association of the Northwest, INC. reported a data breach on October 28, 2022, that occurred due to several employees being the victims of email phishing attacks that affected the PHI of 2,915 individuals (Breach Portal: Notice to the secretary of HHS breach of unsecured protected health information). Another example is Klamath County, which reported a data breach on November 29th, 2022, after an employee emailed the PHI of 547 individuals to a personal email account (Breach Portal: Notice to the secretary of HHS breach of unsecured protected health information).

The Wall of Shame comes with potential advantages and disadvantages to its use and availability for anyone to view. Transparency, accountability for covered entities, public awareness of data breaches, and an additional incentive for security measures are all advantages

to the Wall of Shame being public. This forces covered entities to be held accountable for their actions and for the public to be able to hold the companies accountable. The web descriptions available, which are attached to the case, include a brief statement including what the report is, how many affected individuals are, and the covered entities' actions in response to the breach. Allowing this to be visible will allow hospitals to provide higher or improved actions and repercussions. Being placed on the Wall of Shame can be embarrassing or problematic for the covered entity, which will cause the covered entity to make improvements on security and training for staff members. The disadvantages can include reputational damage for the covered entities, motivation to underreport breaches or withhold information, and reduced trust in the healthcare system. If the public views the list and sees that a hospital or other covered entity has recently been on the list or has a few open cases, it may cause the public to become critical of the hospital and the hospital may receive backlash, this can lead to financial distress for the hospitals, causing a further chain of domino effects. Covered entities with data breaches of over 500 persons must also notify all persons affected, and prominent media outlets in the area or state (Breach notification rule). Depending on the data breach, under the privacy rule, there may be fines and penalties subjected to the persons or covered entity. There may also be a decrease in trust in these healthcare providers and the healthcare system overall, if the public sees how many data breaches are reported and what PHI is a part of these breaches. Trust amongst stakeholders may also be diminished if data breaches are consistent or avoidable.

The Breach Notification Portal, or HIPAA Wall of Shame, was enacted as a part of the HITECH Act in 2009. The Wall of Shame has received over 5,000 breach cases reported since 2009. The online accessibility of the Wall of Shame to the public presents advantages and disadvantages to covered entities.

Resources

(OCR), O. for C. R. (2021, June 28). *Breach notification rule*. HHS.gov.

<https://www.hhs.gov/hipaa/for-professionals/breach-notification/index.html>

(OCR), O. for C. R. (2023, February 24). *Breach reporting*. HHS.gov.

<https://www.hhs.gov/hipaa/for-professionals/breach-notification/breach-reporting/index.html>

HealthIT.gov. (n.d.). *Breaches of unsecured protected health information*. Breaches of Unsecured Protected Health Information | HealthIT.gov.

<https://www.healthit.gov/data/quickstats/breaches-unsecured-protected-health-information>

Sec. 13402. Notification In The Case Of Breach. Hitech Breach Notification. (2009).

<https://www.hipaasurvivalguide.com/hitech-act-13402.php>

U.S. Department of Health & Human Services - Office for Civil Rights. (n.d.). *Breach Portal:*

Notice to the secretary of HHS breach of unsecured protected health information. U.S.

Department of Health & Human Services - Office for Civil Rights.

https://ocrportal.hhs.gov/ocr/breach/breach_report.jsf